PART 1 - CONSTITUTION

ARTICLE 1

NAME, MISSION STATEMENT, CHARACTER, OBJECTIVES, APPROACH & STATEMENT OF FAITH

SECTION I: NAME

The name of the mission shall be LOMAMO, doing business as (dba), LOVE MATTERS MOST - KENYA. ~~The mission~~ This faith-based, non-profit ministry shall be registered as a Society in the Republic of Kenya.

SECTION II: MISSION STATEMENT

An orphan prevention program providing lifesaving care to vulnerable adults and children in Kenya who've been abandoned to die from HIV/AIDS.~~To serve the sick and dying with the love and compassion of Jesus Christ gently leading them to the foot of the Cross with the hope of Salvation.~~

SECTION III: CHARACTER

A. The mission shall be interdenominational, non-political, non-sectarian, non-profit-making; faith based, with no social or racial limits.

B. All members, including full time staff, volunteers and lay leadership shall by personal conviction subscribe and adhere to this Constitution. All activities must be aligned with the Statement of Faith.

SECTION IV: OBJECTIVES

A. To serve the sick and dying with the love and compassion of Jesus Christ.

B. To rescue children from becoming orphans.

~~B.~~C. To proclaim the gospel of Jesus Christ to all people.

~~C.~~D. To raise funds to achieve the objectives of the mission.

~~D.~~E. To restore dignity and hope to those abandoned in sickness.

~~E.~~F. To be known as devoted followers of Jesus Christ by our love and compassion for others.

SECTION V: APPROACH

A. To cooperate with local churches and other organizations to reach those people neglected by society as a result of infection, rejection and stigmatization;

B. To provide counseling, care-giving, nutritional support and encouragement, helping them to understand their inherent value and their God-given right to find redemption and forgiveness through the shed blood of Jesus.

C. To reach out to the Body of Christ, internationally, to share the important work of this mission and encourage their support by sending volunteers and resources for the work of this mission.

SECTION VI: STATEMENT OF FAITH

A. We believe the Bible to be the inspired, infallible, authoritative Word of God.

B. We believe there is one God, eternally existent in three persons: Father, Son and Holy Spirit.

C. We believe in one God, the Father almighty, maker of heaven and earth, of all things visible and invisible.

D. We believe in one Lord Jesus Christ, the only Son of God, begotten from the Father before all ages, Through him all things were made. For us and for our salvation he came down from heaven, became incarnate by the Holy Spirit and the virgin Mary, and was made human.

E. We believe Jesus was crucified for us, suffered death and was buried;

F. We believe on the third day Jesus rose again, according to the Scriptures. He ascended to heaven and is seated at the right hand of the Father.

G. We believe in the Holy Spirit, the Lord, the giver of life. He proceeds from the Father and the Son, and with the Father and the Son is worshiped and glorified.

H. We believe in one body and one Spirit, one Lord, one faith, one baptism; one God and Father of all, who is over all and through all and in all.

I. We look forward to the resurrection of the dead, and to life in the world to come. Amen.

J. We believe in the spiritual unity of all believers in our Lord Jesus Christ.

ARTICLE 2

ANNUAL MISSION CONFERENCE and MISSION BOARD OF TRUSTEES

SECTION I: ANNUAL MISSION CONFERENCE

A. LOVE MATTERS MOST shall be governed by the Annual Mission Conference; its membership shall be comprised of:

   1. Mission Board of Trustees

   2. Up to six (6) voting delegates from among staff, supporters, and advisors

   3. The combination of voting members from the Board of Trustees and Voting Delegates shall always be an odd number.

B. Each member shall have one vote and a quorum shall consist of 51% of the members of the Annual Conference. If a member holds two roles, they still only have one vote.

C. The control and administration of this mission shall, from the date of this Constitution, vest in the Annual Mission Conference. This is also known as the Annual Geneal Meeting.

D. The Annual Mission Conference shall meet once per year. The following reports must be submitted:

1. A written report submitted by the Chairperson or Ministry Director for LOVE MATTERS MOST -KENYA including goals from the previous year, accomplishments, potential areas of improvement and plans/recommendations for the future.

2. Audited and approved Financial Statements, approved development projects, operating budgets and approved ministry plans for the next three years of service.

E. The Annual Mission Conference shall have the power to amend this Constitution by a two-thirds majority vote of the members of the Annual Mission Conference, whether in person or by proxy. Proposed changes must be mailed by post or electronically to all members of the Annual Mission Conference ninety (90) days prior to any meeting of the delegates.

F. A special meeting of the Annual Mission Conference can be called for by an agreement in writing of two-thirds of the members. The notice of such a meeting including the agenda shall be mailed by post and emailed to all members of the Conference ninety (90) days prior to the meeting.

SECTION II: MISSION BOARD OF TRUSTEES

A. The Mission Board of Trustees shall consist of the following:

1. Chairperson
2. Vice-Chairperson
3. Treasurer
4. Secretary
5. Up to ~~three (3)~~Nine (9) members (friends of the ministry / advisors, etc.)
6. Each member shall have one vote and a quorum shall consist of 51% of the members of the Mission Board of Trustees. If a member holds two roles, they still only have one vote.

B. Proposed members for the Board of Trustees shall be approached and have accepted the nomination before being proposed at a meeting of the Annual Mission Conference. In order to support the needs of the business, proposed members can be co-opted by the Board of Trustees to fill a temporary role until the next meeting of the Annual Mission Team at which time co-opted members must be elected as full members of the Mission Board of Trustees.

C. The Board of Trustees appointed upon execution of this Constitution shall remain in place for one year. Each member will be reaffirmed or replacements can be made at the first Annual Mission Conference.

D. Members of the Mission Board of Trustees shall, after the first year, be elected by ballot for a three-year period (term of office) at the appointed meetings of the Annual Mission Conference.

E. Office bearers may not be re-elected for more than three consecutive terms of office.

F. A circulated resolution signed by a simple majority of the Mission Board of Trustees shall be valid and effective as if it had been passed at a meeting of said Board.

G. The Mission Board of Trustees shall meet no fewer than two times per year at an agreed upon place and time.

H. All members of the Mission Board of Trustees will serve the mission without any remuneration for services rendered for the management and oversight of the mission.

I. Office Bearers of the Mission Board of Trustees will be elected by the Board at the first meeting after a vacancy has arisen.

J. Functions of the Mission Board of Trustees are:

1. To handle all interim Annual Mission Conference matters.
2. To report to the Annual Mission Conference on all decisions taken for ratification.
3. To appoint committees to facilitate the work of the Mission Board of Trustees.
4. To oversee the financial management of the mission.
5. To establish and review personnel policies.
6. To oversee the overall ministry of the mission.
7. To approve and manage the Mission Income and Expense budgets.
8. To take an active role in fundraising to ensure the raising of the required and approved annual budget.
9. To keep the Mission Director accountable for the implementation of the policies and to provide counsel, advice, prayer support and friendship for the Mission Director and the Mission staff.

K. Duties of the Mission Board of Trustees are:

1. To attend a minimum of four Mission Board of Trustees meetings every three years.
2. To express his/her views and constructive criticisms; being willing to abide by the decision of the majority of the Mission Board of Trustees
3. To pray regularly for the work of the mission.
4. To represent the mission in their local church and community.
5. To maintain and honor a high level of confidentiality of all Board of Trustees business and matters.

Article 3

DUTIES OF OFFICE BEARERS: CHAIRPERSON, VICE-CHAIRPERSON, TREASURER, SECRETARY, AND MISSION DIRECTOR

SECTION I: CHAIRPERSON AND VICE CHAIRPERSON

A. The Chairperson or Vice Chairperson of the Mission Board of Trustees or their nominees shall preside at the Annual Mission Conference and Board of Trustee Meetings.

SECTION II: TREASURER

A. The Treasurer shall represent the Mission Board of Trustees in ensuring that proper control be exercised over the budget and expenditures of the Mission office.

SECTION III: SECRETARY

A. The Secretary will be responsible for: the keeping of all minutes; the safe-keeping of all legal and other documents required by the mission; the dissemination of all information as required by the Mission Board of Trustees.

SECTION IV: MISSION DIRECTOR

A. Duties of the Director shall include the following:

1. General oversight of the ministry including personal visits to patients of the ministry.
2. Effective management and operation of the Mission office.
3. Implementation of the policies and decisions of the Annual Mission Conference and Mission Board of Trustees meetings.
4. Maintaining the good name of the ministry.
5. Act as spokesperson for the mission.
6. Act as arbitrator in any disputes which may arise between staff and volunteers.
7. Conduct an annual ministry review in conjunction with the MANAGEMENT TEAM, which shall be comprised of five (5) staff members.

Article 4

FINANCES AND ADMINISTRATION, LEGAL REPRESENTATIVES AND DISSOLUTION OR TERMINATION

SECTION I: FINANCES AND ADMINISTRATION

A. The mission will be a faith-based, not for profit organization. All income and property of the mission shall be applied solely towards the promotion of the objectives of the mission and no portion thereof shall be paid or transferred directly by way of dividends or bonus or remuneration, to any person except for the payment in good faith of compensation to any person in return for services rendered to the mission.

B. The mission may in good faith receive, purchase or otherwise acquire any property, gift, donation or income for the furtherance of the objectives of the mission.

C. All immovable property and other investments and assets used in the operations of the mission shall be vested in the name of LOMAMO, dba, LOVE MATTERS MOST - KENYA.

SECTION II: LEGAL REPRESENTATIVES

A. The legal representatives of LOVE MATTERS MOST - KENYA shall be:

1. Mission Board of Trustees Chairperson
2. Mission Board of Trustees Vice-Chairperson
3. Mission Director
4. Mission Board of Trustees Treasurer
5. Mission Board of Trustees Secretary

The signatures of any two (2) of the Legal Representatives, duly authorized by a resolution of the Mission Board of Trustees and ratified at the Annual Mission Conference, shall be required for the signing of all formal and legal documents on behalf of the mission.

B. Responsibilities and duties of the Legal Representatives:

1. To accept gifts, donations and bequests or any other assets in money or in-kind and distribute contributions and gifts in accordance with the donor's instructions. To pay the salaries and overhead expenses in line with the budget and approved by the Mission Board of Trustees.
2. To carry out resolutions of the Mission Board of Trustees to receive, convey, exchange, donate, transfer or sell fixed assets or immovable property; to enter into employment contracts; to open any form of financial account, or to execute any document of indebtedness.

SECTION III: DISSOLUTION OR TERMINATION

A. The mission may only be dissolved by a two-thirds vote of the delegates present (whether in person or by proxy) of the Annual Mission Conference provided that dissolution has been approved by the Mission Board of Trustees and posted to all staff and affected parties six months before a meeting is held.

B. In the event of the mission being dissolved, the Mission Board of Trustees shall, after consultation and agreement, distribute all remaining assets, if any, after all just expenses and debts have been paid, to one or more institutions having objectives similar to that of this mission, at or before the time of dissolution.

BY-LAWS

ARTICLE 1

MINISTRY PROGRAM

SECTION I: LOVE MATTERS MOST - KENYA MINISTRY PROGRAM

A. Programs of the LOVE MATTERS MOST - KENYA ministry will be focused on providing compassionate care to the sick and dying who are without means to help themselves.

B. The Program shall be overseen by the Mission Director with the support of the Mission Board of Trustees.

C. The main function of the LOVE MATTERS MOST - KENYA ministry shall be:

1. To implement the vision and mission of LOVE MATTERS MOST - KENYA
2. To provide home-based care
3. ~~To provide hospice and~~ medical care
4. ~~To provide funeral assistance when needed~~

D. Ministry Requirements

1. The main emphasis of the ministry will be evangelism through discipling and care giving.
2. There must be an organized system of follow-up and a discipleship program for spiritual inquirers.
3. There must be a definite prayer program involving all people we minister to, donors, board members, staff and volunteers. Monthly days of prayer and fasting are encouraged.

E. Other Requirements

1. All Board members, full time paid staff and volunteers are required to maintain and adhere to the highest possible spiritual, ethical and moral standards, according to God's written Word and these standards must be emphasized to all people involved with the ministry.
2. All Board members, full time paid staff and volunteers must sign a declaration that they unreservedly support the Mission Statement, Vision Statement, Statement of Faith, this Constitution and By-Laws of LOVE MATTERS MOST - KENYA.
3. A program of volunteer training and mobilization is developed and implemented.

ARTICLE 2

VISION STATEMENT, CORE VALUES, FINANCIAL POLICY

SECTION I: VISION STATEMENT

That no child of God feels abandoned in their struggle to live; that all people have an opportunity to know the depth of Christ's love and their immense value to Him.

SECTION II: CORE VALUES

A. Passion for God - Our passion is to love the Lord God with all our heart, soul, strength and mind, striving to do His will and glorify Him by being His hands, feet, mouth and ears, as ambassadors of the living Lord. We will be known as Christians by our LOVE.

B. Obedience - We unequivocally believe that our heavenly Father **always** knows what is best for us. It is through the indwelling of the Holy Spirit that we are able to lead holy lives, set apart by obedience and sincere love, having been born again through the living and enduring Word of God.

C. Compassion - As it is written in Colossians 3:12, we believe we should clothe ourselves with compassion, kindness, humility, gentleness and patience. With compassion we will reach out in care and love to those who are harassed and helpless, stricken and rejected, the orphans, widows/widowers and the abandoned.

D. Grace - We believe we have been saved by grace and grace alone. We live in the humility of that grace and strive to extend the same grace to those we care for, those we serve with and those who support us.

E. Faith - By faith we trust in the Lord Almighty, walking confidently at the prompting of the Holy Spirit in full expectation of what God can and will do with humble hearts and willing servants.

F. Unity - We believe the body of Christ is a unit, and though made of many parts, they form one body. Likewise, we who are Believers must adhere to the message of Philippians chapter 2, which says, "Therefore if you have any encouragement from being united with Christ, if any comfort from his love, if any common sharing in the Spirit, if any tenderness and compassion, then make my joy complete by being like-minded, having the same love, being one in spirit and of one mind. Do nothing out of selfish ambition or vain conceit. Rather, in humility value others above yourselves, not looking to your own interests but each of you to the interests of the others.

G. Evangelism - We believe evangelism is the ultimate expression of compassion. Evangelism means caring for the physical, medical, and emotional needs as a starting point for offering the living water of salvation.

H. Discipling - We understand and agree that accepting Christ as Savior is only the first step to becoming a fully devoted follower of Jesus Christ. We will offer opportunities for continued growth in discipleship so that newly committed, or returning Christians can grow deeply in God's Word as a foundation for everything in their lives.

I. Abstinence - We believe that God's plan for His people is abstinence from sexual activity before marriage and faithfulness with sexual purity in marriage.

J. Marriage - We believe the institution of marriage is intended by God to be a permanent, lifelong commitment between one man and one woman enduring by the power of the Holy Spirit regardless of trials.

K. Family - We believe the family is the God-designed, basic building block of society. We work toward strengthening existing families, nurturing broken families and providing vision for future families.

SECTION III: FINANCIAL POLICY

A. We are utterly and completely dependent on God's provision for all our needs. Our God-given responsibility is to work, pray for and give to the work of God's kingdom.

B. We must be good stewards of the resources God entrusts us with. Therefore we maintain high standards and sound practices for financial and personnel management.

C. We accept any gifts, as long as they are made without conditions that would compromise any part of the constitution or by-laws, mission statement, statement of faith or core values.

D. We attempt to maintain cash reserves to sustain cash flow for all ministry commitments.

E. We will not make commitments to ministry that we cannot be confident of honoring. When funds are scarce we will operate on a funds-available only basis with careful prioritization of needs.

F. We will avoid borrowing unless it is absolutely necessary to do so; in that case we will only borrow that which we have adequate funds to repay promptly.

G. We will firmly respect the wishes of donors who designate their gifts for particular purposes.

H. We will conduct ourselves with honesty and integrity. We will conduct annual audits and make the results available.

Signature_____ _____

Title_____ _____

Printed Name_____ _____

Date_____ _____